



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

SEP 25 2003

DOT-E 10765
(SIXTH REVISION)

EXPIRATION DATE: August 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Calibron Systems, Inc.
Scottsdale, AZ
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, mark, sale and use of a non-DOT specification container described as a mechanical displacement meter prover to be used for the transportation in commerce of the Division 2.1 and Class 3 materials identified in paragraph 6 below. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.201, 173.202, 173.203 and 173.304a in that a non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Calibron Systems, Inc. dated July 8, 2003, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Hydrocarbon gas mixture, liquefied, n.o.s.	2.1	UN1965	N/A
Hydrocarbons, liquid, n.o.s.	3	UN3295	I, II, III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification packagings described as a mechanical displacement meter prover permanently attached to a trailer. The meter provers have nominal water capacities between 1 and 99 gallons and must be designed to ANSI Standards B 31.4. The pressure vessels are made up of 2 inch, 3 inch, 6 inch, or 8 inch outside diameter schedule 80 or heavier pipe. Pipe assembly is by 600 lb. ANSI welded flange joints. The maximum service pressure is 1440 psig for assemblies with 600 lb. flanges at ambient temperature. Pressure relief devices are not required. The provers must be as shown on Calibration Systems, Inc's. drawings 43100409, 04100264-1, 04-1-264-2, 43-100558 and 43-100643 and be in accordance with the technical specifications submitted with the application on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition:

- (1) The pressure rating, as determined from the pipe component with the lowest pressure rating, must be marked on each prover unit. A hydrostatic test at the rated pressure is required prior to the first use of the prover tank.
- (2) During transportation the pressure in the prover may not exceed 25% of the pressure rating marked on the prover unit.
- (3) The rear bumper on the trailer must meet the requirements of §§ 178.337-10(d) and 393.86.

b. TESTING - Each prover must be visually reinspected once a year and retested once every five years at not less than 75% of the rated pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000 are required to be in conformance with § 173.32(e).

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

e. The motor vehicle driver must have been trained in the proper handling and emergency response procedures in the event of delay, fire or accident.

f. MARKING - The outside of each package must be plainly and durably marked "DOT-E 10765".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENT: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

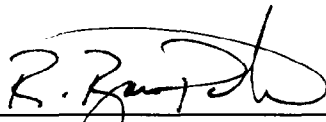
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.



Robert A. McGuire
for Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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